

The Goa Public Health Rules, 1987

Source: <https://indiankanoon.org/doc/35154044/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[3](#)

[\]](#)

[State of Goa - Act](#)

[The Goa Public Health Rules, 1987](#)

[GOA](#)

[India](#)

[The Goa Public Health Rules, 1987](#)

[Rule THE-GOA-PUBLIC-HEALTH-RULES-1987 of 1987](#)

[Published on 17 September 1957](#)

[Commenced on 17 September 1957](#)

[\[This is the version of this document from 17 September 1957.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Goa Public Health Rules, 1987](#)

[Published vide Notification No. 61/2/79-PHD](#)

[In exercise of the powers conferred by section 96 of Goa, Daman and Diu Public Health Act, 1985 \(Act 25 of 1985](#)

[\) and all other powers enabling it in that behalf, the Government of Goa hereby makes the following rules, namely:-](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

[These rules may be called Goa Public Health Rules, 1987.](#)

[\(2\)](#)

[They extend to the whole of the State of Goa.](#)

(3)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Goa, Daman and Diu Public Health Act, 1985 (Act 25 of 1985

);

(b)

"Baking" includes bake house where the flour is prepared for human consumption;

(c)

"Coffee House" means a place where drinks are prepared out of coffee powder;

(ca)

["licence" means the licence issued by the Director after conducting necessary inspections as specified under the Act; [Inserted by the Amendment Rules, 2010.]

(cb)

"Manager" means the owner or any person having control of administration and management of a massage parlour/SPA and/or of the person working or employed therein;

(cc)

"massage" means any method of treatment of the body for remedial or hygienic purpose including rubbing, stroking, pressing or kneading with the hands, feet or by any mechanical or electrical apparatus or appliances or supplementary aids such as antiseptic oils, powder, cream, lotion or other similar preparation used in this practice;

(cd)

"massage parlour" means an establishment or premises by whatever name be known providing massage or any other like service;

(ce)

"masseur/therapist" means a person employed by manager for providing massage or other services in a massage parlour/SPA and having recognized qualifications;

(cf)

"nurse" means a person employed for nursing duty in a massage parlour and having recognized qualification;]

(d)

"Sanitary Authority" means Health Officer/Medical Officer i/c Primary Health Centres/Urban Health Centre, Chief Medical Officer, Dy. Directors of Health Services and the Director of Health Services;

(e)

"Section" means section of the Act;

(ea)

["SPA" means a resort/establishment providing therapeutic bath, a resort area having mineral springs, a fashionable hotel, or resort or health spa, a tub for relaxation or invigoration; including a device for raising whirlpools in the water;] [Inserted by the Amendment Rules, 2010]

(f)

"Tea Shop" means a place where the drinks are prepared out of tea powder.

3.

Powers to be exercised by Director.

- The Director shall be responsible for the proper functioning of the local authorities under the Act and shall have the powers:-

(i)

Supervise and direct the Health Officers, Medical Officers and local authorities in the matter of prophylactic, preventive care and treatment of the persons suffering from infectious diseases and in the matter of immunization, disinfection and disinsectization of public places.

(ii)

Give necessary guidance to the local authorities and their Health Officers in the implementation of the Act and direct them to get the work of sanitation carried out on priority basis.

4.

Appointment of Health Officers.

- The Health Officer to be appointed under section 8 of the Act shall possess the qualifications laid down for the appointment to the posts of Medical Officers or Health Officers of the Primary Health Centre.

5.

Injurious refuse not to be discharged into public drain.

(1)

All solid wastes, like mud, sand, gravel metal dust, cereals or any other similar substances or refuses which may cause blockage of free flow of water from the public drain shall be disposed off far away from any public drain after the same are properly arranged or treated so as to avoid a nuisance to the public.

(2)

All liquid wastes like corrosive liquid, acids or alkaline, poisonous substances, or any other products or substances which may be dangerous, toxic or offensive to the health or which causes or likely to cause nuisance shall be treated, neutralised by proper substances to the satisfaction of the Health Officer before it is discharged into the public drain.

(3)

The substances specified under sub-rule (2) shall be discharged only after obtaining No Objection Certificate from the Sanitary Authority.

6.

Pollution of water prohibited.

(1)

Polluting substances like solid or liquid sewage, poisonous, noxious or polluting liquid discharge from any or during any manufacturing process or of any other source shall not be discharged into water course, lake, tank, river, sea-water unless the same are properly treated to the satisfaction of the Sanitary Authority.

(2)

The substances mentioned in sub-rule (1) above shall be discharged only after obtaining No Objection Certificate from the Sanitary Authority.

7.

Latrines.

- All unsanitary type of latrine, shall be altered or repaired suitably to fit with the standard of sanitary type latrine adopting any system such as RCA, Sofa Sandas, Bore-well or dug well latrine as advised by the Health Officer according to suitability of place and financial position of the owner.

(a)

The Health Officer shall notify the owner or occupier of the premises to alter or repair such unsanitary type of latrine within a specific period of time.

(b)

If the owner or occupier neglects the notice of the Health Officer issued under clause (a), the Health Officer shall refer the matter to the Local Authority who shall construct the same and recover the cost from such person as if it were a tax due to the Local Authority.

8.

Cases suspected to be of notified diseases to be brought to the notice of Sanitary Authority.

(1)

All cases suspected to be of notified diseases shall be brought to the notice of the sanitary authority. The communication shall be made as soon as such case comes to the knowledge of the medical practitioner or any doctor who treats the patient or the head of the family of the patient or by patient himself or by the owner of the premises where the patient is residing.

(2)

No person shall refuse the blood examination requested by the sanitary authority for detection of parasite, virus, bacteria or any other infective organism which the sanitary authority thinks necessary. When the sanitary authority thinks that the collection of blood is to be done at night time, it may communicate through its agent to the head of the family or the

patient its intention to do so in advance during the day time.

(3)

No person shall refuse any investigations demanded by the sanitary authority for the diagnosis of the disease. -

(4)

Whenever the result of the examination is found to be positive, the patient shall be placed under treatment and other prophylactic measures shall be prescribed by sanitary authority.

(5)

No patient under treatment shall change his residence even temporarily or pass the night outside the residence without written permission of the sanitary authority.

(6)

The treatment and investigation as well as prophylaxis prescribed under sub-rules (2) and (3) shall be free of charge.

(7)

The treatment, laboratory investigation or prophylaxis shall not be refused by any person and the sanitary authority shall enforce compulsion of the same with the help of police or District Magistrate and without prejudice to penal action prescribed under these rules.

9.

Tenements.

(1)

A tenement shall be considered habitable if minimum one living room, kitchen, bathroom, sanitary type of latrine and safe drinking water is provided with sufficient number of windows and is maintained in hygienic condition to the satisfaction of the sanitary authority.

(2)

The volume of a tenement shall be in proportion of 20 cubic mts. per head whereas the height of the roof shall not be less than 3.0 mts. and if it is over 4 mts. the height shall be considered as 4 mts. only. When the number of inhabitants are more in relation to available space, the tenement shall be considered as over crowded.

10.

Minimum requirement to run hair cutting saloon.

- The following are the minimum requirements to run hair cutting saloon:-

(1)

The plinth area shall be proportionate to the number of seats in the ratio of 60 cms. per seat and the distance in between shall not be less than 1 mt.

(2)

There shall be sufficient number of clean towels, white aprons for customers and white gowns for barbers.

(3)

There shall be a stove, vessels for sterilizing the razor, scissors and other instruments used in cutting and shavings.

(4)

There shall be one or more disinfectants like lysol, 20 per thousand solution of aluminium sulphate, spirit or detol, etc.

(5)

There shall be porcelain or glass containers for immersing instruments in disinfectant solutions.

(6)

There shall be one wash basin with tap with running water for washing the utensils used in shaving and cutting.

(7)

There shall be proper arrangements for disposal of waste water.

(8)

It is compulsory to change the white apron for every person and the same shall not be re-used for any other person unless it is washed in the laundry.

(9)

All instruments shall be washed and cleaned and then kept immersed in disinfectant for 15 minutes before using for other person.

(10)

Every worker employed in the hair cutting saloon shall possess a valid health card issued by the local sanitary authority.

The sanitary card shall be in the form No. 1 attached to these rules and shall be renewed every year.

11.

Conditions required to function a laundry.

(a)

There shall be a separate room or closed container to keep the soiled linen and one or more cupboards for clean ironed linen.

(b)

The washing place shall be away from the city area and shall be at a distance not less than 25 metres from any drinking water, well or source.

(c)

In case mechanical equipment is used for washing and drying the linen, there shall be a separate room and necessary arrangements to drain out dirty water by giving connection to the public drain to avoid any collection of water.

(d)

Every worker employed in the laundry shall possess valid sanitary card issued by the local sanitary authority and shall be renewed every year.

12.

Conditions for running a bakery/bake house.

(a)

There shall be minimum 3 rooms.

(b)

There shall be no water closet or privy within the premises.

(c)

There shall be one water tap solely for the purpose of mixing the flour and others for washing the hands.

(d)

No open drain or cess pool shall be within 25 metres of the bakery/bake house.

(e)

The floor, wall, and ceiling shall be finished to a hard smooth surface impervious to moisture.

(f)

The bakery or bake house shall be maintained clean.

(g)

The baking shall be carried out at the detached building and not inside the dwelling house or chawl.

(h)

The room in which baking is carried out shall be airy, well lighted, well ventilated and the windows and doors shall be protected with the mosquito wire net.

(i)

The furnace shall be provided with outlet pipe for smoke so as not to cause nuisance to the neighbours.

(j)

There shall be separate room for storage of flour.

(k)

All the troughs and kneading tables shall be thoroughly cleaned with hot water or soap immediately after and before use and shall at all the times be kept in clean condition.

(l)

Articles of food after being baked shall be stored in a closed container so as to protect them from contamination by flies or infection from impure air, offensive noxious or deturious gas or substance.

(m)

No person shall sleep in any part of the bake house or bakery, sit or recline on any table or structure in the bakery or bake house which is used for preparation of flour for baking.

(n)

Every person employed in the bakery or bake house shall wash his hands with soap and water before handling any article of food which is prepared for human consumption.

(o)

Every person employed in the bakery or bake house shall at all times be dressed with clean clothes and use cap so as to cover the hair and shall not smoke while at work.

(p)

No person shall be employed in the bakery or bake house unless he is examined by the sanitary authority and carries a valid card.

(q)

The bread exposed for sale shall be covered with white paper so as to prevent from contamination by flies, insects or hands.

(r)

No animal of any kind shall be kept within the premises of the bakery or bake house.

13.

Conditions for running a lodging house.

(a)

There shall be an independent room with one or more beds well lighted and with good ventilation with a space not less than 25 cubic mts. per head with a height of room not less than 3.0 mts. and if it is more than 4 mts. it shall be considered 4 mts. for the purpose of assessment.

(b)

There shall be separate sleeping accommodation for residential staff and servants.

(c)

Every room shall be provided with wash basin and running tap water.

(d)

There shall be separate sleeping space for servants, if any, of the visitors.

(e)

The premises shall be maintained clean in all respects.

(f)

There shall be water closet with glazed tiles covering the floor and the wall upto the height of 1.5 mts. and effluent of W. C. shall be connected to septic tank or public sewage.

(g)

There shall be bathrooms for the use of visitors; not less than one for every 25 visitors or less with glazed tiles covering the floor and walls upto the height of 1.5 mts. with showers.

(h)

There shall be provision for pure wholesome drinking water.

(i)

Rooms shall be well painted and maintained clean and shall be white washed at least once a year and there shall be sufficient number of pillow-covers, bedsheets, mattresses, pillows, rugs so as to provide clean and comfortable bedding to the visitors.

(j)

The linen shall be replaced at least once a week or as and when soiled. In case any visitor is suffering or suspected to be suffering from any contagious disease, he shall be referred to sanitary authority for advice and the owner shall comply with any suggestions made by the sanitary authority.

(k)

The workers shall carry a valid sanitary card issued by the sanitary authority.

14.

Conditions to run coffee house, tea shop, taverna, bars, wine shop, liquor shops, cold drink house, juice sellers and other establishment serving drinks for public excluding those who sell intact tins or bottles for public.

(a)

There shall be minimum one or more rooms according to the nature of the establishment and movement of the public.

(b)

The size of the rooms shall be sufficient for sitting of the public and preparation of drinks, if cooking is done there shall be a separate room for such purposes and with sufficient wash basins and smokeless environment. The washing rooms for utensils shall be away from preparation place.

(c)

The utensils shall be washed every time after use with running water and soap and after washing the same shall be immersed in boiled water before they are kept ready for use.

(d)

There shall be filters to provide potable water.

(e)

The potable water used for preparation of food or drink shall be stored in closed clean container.

(f)

There shall be arrangements for disposal of waste water so as to avoid stagnation.

(g)

There shall be tables with top covered by marble, glass or sunmica or any other material easily washable.

(h)

There shall be toilets in sufficient number independent for male and female. The condition can be waived if the market complex is provided with toilet block or there are any public toilets within the distance of 50 mts.

(i)

The entire premises shall be kept clean and workers shall wear clean clothes or dress during the work.

(j)

The workers shall hold valid sanitary cards issued by the sanitary authority.

15.

Conditions to run restaurant, eating houses, boarding, etc.

(a)

There shall be minimum of 3 rooms of sufficient capacity being one for public service and other for preparation of food where they shall use smokeless stoves or chulas.

(b)

There shall be sufficient number of water taps for washing the utensils and clean potable water in closed containers for preparation of food.

(c)

There shall be sufficient number of utensils for boiling the water.

(d)

There shall be sufficient number of filters.

(e)

There shall be tap water or running water or running water for washing the crockery and utensils.

(f)

There shall be proper arrangements for disposal of waste water in order to avoid collection.

(g)

There shall be tables with top covered with material easily washable like marble stone, sunmica or any other similar material.

(h)

There shall be independent one or more toilets block for male and female apart from the 3 rooms mentioned in sub-rule (a) of rule 15. This condition may be relaxed if the connected block have arrangements for public toilet within the radius of 50 mts. from the establishment.

(i)

The cutlery shall be washed with soap and running water and there after passed through boiling water every time after it is used by the customer.

(j)

The garbage and waste products shall not be thrown indiscriminately but shall be collected in proper closed containers which shall be discharged in the Municipal garbage collection pit. The entire premises of the establishment shall be maintained clean, free from flies, insects and shall observe recommendation done by the sanitary authority or public sanitary inspector during their inspection.

15A.

[Requirements and conditions for establishing massage parlour or SPA.

[Rules 15A to 15G inserted by the Amendment Rules, 2010.]

(1)

No person shall establish massage parlour/SPA unless it conforms to the requirements applicable to them, as follows:-

(a)

location of massage parlour/SPA shall be in healthy surrounding only, free from sound pollution as far as possible or adequately soundproofed/air-conditioned;

(b)

massage parlour/SPA having at least 100 sq. ft. treatment room with bath and toilet facilities attached thereto;

(c)

a provision for drinking water facilities;

(d)

employment of necessary employees for cleaning work, etc.;

(e)

appointment of a manager-in-charge of massage parlour/SPA;

(f)

provision for male masseur for massage of males and female masseur for massage of females;

(g)

restrictions towards use of any medicine and oil used for massage of one person to another person;

(h)

suitable arrangements for destructions and disposal of other wastes without affecting to the environment;

(i)

to exhibit name, licence number, details of licence, working hours of each massage parlour/SPA in the premises or building in a manner clearly visible from outside;

(j)

to maintain register and case sheets for recording details of persons visited massage parlour/SPA services;

(k)

to exhibit details of employees, working hours of services, types of massages or services available including fees fixed for each items thereof;

(l)

restricting to function massage parlour/SPA in the vehicle used on land or in water;

(m)

a Dhroni or long-table in massage parlour at least 7 ft. in length and 2½ ft. in width;

(n)

an adequate air and light facilities in the treatment-room in the massage parlour;

(o)

keeping stove and hygienic accessories, equipments, in the treatment rooms for massage parlour;

(p)

to provide for at least two male masseurs and two female masseurs and the proportion thereof to be increased as per the number of treatment rooms;

(q)

services of full time nurses in massage parlour and if it exceeds 10 beds, number of nurses shall be in the proportion 1 to 10;

(r)

appointment of full time one registered male Practitioner;

(s)

to use of uniform by masseurs during working hours:

Provided that requirements specified in clauses (m) to (s) shall not be applicable for establishing SPA.

15B.

Establishment and registration of massage parlour/SPA.

(1)

Every person intending to establish massage parlour/SPA in the State of Goa shall make an application to the Director

in Form I hereto accompanied with such fee as may be specified by the Government.

(2)

All Massage Parlours/SPAS functioning in the State of Goa on the date of coming into force of the Goa Public Health (Amendment) Rules, 2010, shall get themselves registered with Directorate of Health Services within six months of commencement of these rules. They shall apply to the Director in Form I hereto accompanied by a fee as specified in sub-rule (1).

(3)

The Director shall consider the applications received under sub-rules (1) and (2) and upon satisfying the conditions specified in rule 15A and such other conditions as he deems fit, grant the permission or certificate of registration, as the case may be, for a period of three years which shall be renewed for equivalent period upon payment of such renewal fees as may be specified by the Government.

15C.

Form of application.

- An application for grant of permit to operate an ambulance van in the State shall be made to the Director in Form II hereto accompanied by fee of rupees four thousand only and following documents, namely:-

(a)

Registration certificate.

(b)

Experience in first aid.

(c)

List of facilities in the ambulance.

15D.

Requirements and conditions for operating ambulance van.

- Vehicle and Equipment Standards

I. Standards. - Every operator shall ensure, with respect to each ambulance used in the ambulance service he or she operates, that:

(a)

the patient compartment of an ambulance is provided with:

(i)

adequate space and facilities for placement and transport of one or two patients on stretchers;

(ii)

readily accessible storage space for the equipment and supplies;

(iii)

interior surfaces in good repair that are easily cleaned and sanitized;

(iv)

seating in the patient compartment for at least one attendant, with at least one attendant's seat to be rear-facing and located at the head of the principal or main stretcher patient;

(b)

each ambulance is constructed and equipped to provide for,-

(i)

easy loading of stretcher patients by means of a door or doors at the rear of the vehicle; and

(ii)

loading of stretcher patients by means of a door or doors on the passenger side of the vehicle; and

(iii)

door openings into or out of the patient compartment described in sub-clause (i) that are designed and equipped to permit the doors to be opened from the inside of the vehicle and comply with transportation standards;

(c)

a lap-type safety seat-belt conforming to the standards, is provided for each seating position in the ambulance, and that the belt locking mechanism and mounting device for the safety seat-belt is properly maintained, is in good working order and meets the transportation standards;

(d)

adequate lighting for the care of patients through the placement of low intensity cabinet lights;

(e) storage for the equipment required to prevent or minimize projections and sharp edges; and

(f) secure fastening or secure storage for all equipment required;

(g) the electrical loads of all electrical and electronic components do not exceed the ambulance's generating system capacity;

(h) each ambulance is equipped with an isolated dual battery electrical system with the ability for each battery to simultaneously carry the electrical load described in clause (g);

(i) each ambulance is provided with,-

(i) a light bar (blue flash lights), siren and public address system are to be mounted on the ambulance;

(ii) a minimum of one high intensity fog-driving light;

(iii) an audio warning device that automatically produces continuous multiple tones;

(iv) a public address system;

(v) the lights required are on a different electrical circuit; and

(vi) the controls for the signals and devices required are readily accessible to the driver and operable by the driver while seated in the driving position;

(j) each ambulance is predominantly white with a horizontal Omaha orange reflective band or bands extending along each side of the vehicle, in a proportion and dimension that is appropriate to the design of the vehicle, with a minimum width of 15 centimetres and a maximum width of 45 centimetres;

(k) each ambulance displays the word "AMBULANCE",-

(i) on the front of the vehicle in legible, reverse, blue reflective capitalized lettering that is at least 10 centimetres in height, with lines at least 1.5 centimetres in width making up the letters; and

(ii) on the rear of the vehicle in legible blue reflective capitalized lettering that is at least 15 centimetres in height, with lines at least 2.5 centimetres in width making up the letters; and no ambulance has any other lettering, symbols or designs appearing on the exterior of the ambulance and the visibility into the patient compartment of each ambulance is reasonably restricted by the use of partly tinted or frosted windows;

(l) the ambulance accessory equipment should contain First Aid box, one or two stretchers depending on the capacity of the ambulance, oxygen cylinders, if required;

(m) ambulance drivers should have the identity card duly approved and signed by Director and white coloured uniforms (white full sleeves shirt and white trouser);

(n) the medical equipment in the quantities and in accordance with the specifications specified by the Director;

(o) the ambulance service is accessible by the public through a dedicated telephone line on a 24-hour per day basis.

II. Maintenance. - Every operator shall maintain each ambulance and the equipment required,-

- (a)
in a safe mechanical condition;
- (b)
in proper working order; and
- (c)
in a clean and sanitary condition.

III. Disposable equipment. - (1) Every operator shall:

- (a)
maintain disposable equipment or supplies required in their original, sterile, sealed packaging; and
- (b)
discard the disposable equipment or supplies after use.

(2)
Where equipment that requires sterilization is used, every operator shall ensure that the equipment is sterilized prior to re-use in accordance with manufacturer's specifications.

15E.

Permission, inspection, display.

(1)
The Director may, after satisfying the requirements specified in rule 15D, grant a permit for operating ambulance van for a period of five years. The Director may also refuse the application if the applicant fails to rectify deficiency in the application within a period of seven days thereof.

(2)
The owner or operator of ambulance van shall file a report on the vehicle safety inspection to the Director from such authority and within such period as directed by the Director.

(3)
The operator of an ambulance service shall display the permit in a conspicuous place at the main premises from which he operates the ambulance service.

15F.

Renewal of permit.

(1)
An application for renewal of permit shall be made three months before expiry of permit to the Director accompanied by renewal fee of rupees one thousand only.

(2)
The Director shall, after considering the requirements and conditions for operating ambulance van as specified in rule 15D, report as specified in sub-rule (2) of rule 15E and such other requirements as he deems fit, renew the permit before it's expiry.

15G.

Inspection of ambulance van.

(1)
Any officer as duly authorized by the Director in this behalf, may, at all reasonable times inspect any ambulance van reported or suspected to be used without permit or being used in contravention of condition of such permit or other purpose not duly authorized thereof, seize and detain such ambulance van as long as may reasonably necessary for examination of contents in the ambulance van and inspection of all records relating to it in possession of such driver or other person in charge of such ambulance van.

(2)
Every officer seizing any ambulance van under this section shall put a mark, indicating that the same has being seized and shall as soon as may be, make a report of such seizure to the Director or any officer authorized in this behalf with relevant documents alongwith safe custody of ambulance van].

16.

Penalty.

- Whoever commits (a) breach of the provisions of rule 8 shall, on conviction by a Magistrate, be punishable with a fine, which may extend to Rs. 100/- or with imprisonment which may extend to 3 months or with fine or with both.

(b)

A breach of any other provision of the rules, shall on conviction by a Magistrate, be punishable with fine, which may extend to Rs. 2000/- and in the case of a continuing breach, after conviction of the first breach, with a fine which may extend to Rs. 30/- per day.

(c)

A breach of direction given shall be punished with a fine which may extend to Rs. 20/- for every day during which the breach continues after receipt of notice from the local authority or the Health Officer as the case may be, to discontinue such breach.

17.

Compounding of offences.

(1)

Subject to the condition, if any, as may be prescribed, the local authority or the Health Officer may accept from any person alleged to have committed offence under the Act or under the rules made thereunder, other than the offence under rule 8 or bye-laws either before or after the commencement of any proceedings against such person in respect of such offence by way of composition for such offence, a sum not exceeding Rs. 2000/-.

(2)

The local authority or the Health Officer as the case may be, shall if there is no reason to the contrary make an Order in writing specifying therein-

(i)

the sum determined by way of composition;

(ii)

the date on or before which the sum shall be paid;

(iii)

the Authority before whom and the date on or before which a receipted challan shall be produced in proof of such payment; and

(iv)

the date on or before which the person should report the fact to the local authority or the Health Officer as the case may be.

(3)

The local authority or the Health Officer as the case may be, shall send a copy of such Order to the person concerned and also the Authority referred to in sub-clause (iii) of sub-rule (2).

(4)

After compounding any offence under the Act, and the rules, if the person repeats the same offence again, he shall be liable to fine double the amount payable earlier and for continuance of the same offence Rs. 30/- shall be recovered every day as long as the breach continues.

18.

Fine to be imposed by sanitary authority.

- Whenever any offence is punishable with fine, it shall be imposed by the local authority/or Health Officer or any other authority authorised by the Government to investigate the case and it shall record the offences in a panchanama containing the name of the offender, time and date of offence, rule which is breached and all other particulars relevant to the offence in presence of 2 witnesses and obtain signature of the offender and witnesses and thereafter the officer investigating the case shall sign the same and submit it to the local authority or Health Officer having jurisdiction for imposing penalty. Refusal of signing the panchanama by the person committing the breach shall not vitiate the proceeding provided this fact is recorded in the panchanama by the investigating officer in the presence of two witnesses whose signatures are recorded thereon.

19.

Case to be referred to Magistrate.

- When the offence is punishable by fine combined with imprisonment or one convertible by another, then the case shall be referred to a Magistrate having jurisdiction over the area.

20.

Closing down of establishment or dwelling house.

- The closing down of any establishment or dwelling house shall be done through District Magistrate who shall give the establishment all reasonable opportunities and furnish guidelines before closing down the same.

21.

Compounding of offences.

- The local authority or the Health Officer may compound any offence under the Act or these rules.

22.

Recovery of fine to constitute receipt of Directorate of Health Services.

- The amount recovered as fine shall constitute the receipt for the Directorate of Health Services and shall be credited to the appropriate head of Account.

23.

Cognisance of offence.

- No cognisance of offence shall be taken by the Magistrate unless the case is filed by the sanitary authority or local authority.

24.

Repeal and Saving.

(1)

Portaria 7012 dated 17-9-1957 and Diploma Legislative 1701 dated 11-4-1957 are hereby repealed:

Provided that the repeal shall not affect-

(a)

the previous operation of any law so repealed or anything duly done or suffered thereunder, or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred under any law so repealed in so far as it is consistent with the provisions of these rules; or

(c)

any penalty, forfeiture or punishment incurred in respect of any offence committed against any law so repealed;

(d)

any investigation, proceeding, legal proceeding, or remedy in respect of any such right privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid; and any such investigation, proceeding, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed as these rules had not been framed.

[Form I]

[Form I & II inserted by the Amendment Rules, 2010.]

(See rule 15B)

Application For Establishing Massage Parlour/spa

(1)

Name of the Massage Parlour/SPA, if any:

Latest passport size photo of the applicant Self Attested

(2)

Name of promoters with full postal address:

(3)

Status of owners/promoters, whether company (copy of memorandum and Articles of Association may be furnished):

(a)

Partnership firm (if yes, copy of Partnership Deed and certificate of registration under Partnership Act may be furnished):

(b)

Proprietary concern (if yes, give name and address of the promoters):

|-

(4)

Location of the centers alongwith full address:

(5)

Details of Location-

(a)

Area:

(b)

Title (whether outright purchased) if yes, copy of the registered lease deed should be furnished:

Yes/No

(c)

Survey number:

(d)

Village, Taluka and District:

(e)

Distance from nearest town:

(f)

Distance from nearest railway station:

(g)

Distance from nearest airport:

(6)

If center is attached to a hotel/resort/hospital:

(7)

Details of the building-

(a)

Plinth area (floor-wise):

(b)

Building number:

(c)

Details of building license from local body (attach blueprint of the building and copy of building license):

(8)

Details of facilities-

(9)

Details of equipment-

(a)

Massage table (number and size):

Yes

No

(b)

Gas or electric stove:

(c)

Medicated water facility:

Yes

No

(d)

Facilities for sterilization:

Yes

No

(e)

Facility for steam bath:

Yes

No

(f)

Others, if any (please specify):

(10)

Details of personnel-

(a)

Number of male masseurs:

(b)

Number of female masseurs:

(11)

Quantity of medicine and health programmes-

(a)

The firm that supplies medicine (with full address):

(b)

The health programmes offered (specify length of each treatment programme):

(12)

Acceptance of the regularity conditions:

(13)

Application fees (details of DD) (a demand draft for Rs. 1,000/- drawn in favour of?

The Director, Directorate of Health Services, Government of Goa, Campal, Panaji ? Goa403 001), is to be enclosed with the application:

(14)

I am aware of the conditions prescribed by the Directorate of Health Services for the Massage Parlour/SPA and wish to confirm that I shall abide by the same and such other conditions as may be laid down from time to time by the Directorate of Health Services for the Massage Parlours/SPA.

(Name)

Address

Form II

(See rule 15C)

Grant of Permit to Operate an Ambulance Van

(1)

Name of the owner or operator of an Ambulance:

Latest passport size photo of the applicant Self

Attested

(2)

Name of promoters with full postal address:

(3)

Social Security Number:

(4)

Telephone Number:

(5)

Mobile Number:

(6)

Details of Ambulance:

(a)

Ambulance Number:

(b)

Type of Ambulance:

(7)

Status of owner/promoters, whether company is registered:

(8)

Type of service

{|

Full Time

Part Time

Full or Part Time

|-

| (9)

| Location of the ambulance centers alongwith full address

(where the ambulance will be stationed):

|

|-

| (10)

| Details of Location-

|

|-

|

| (a)

| Distance from nearest Primary Health Centre:

|

|-

|

| (b)

| Distance from nearest District Hospital:

|

|-

|

| (c)

| Distance from Goa Medical College:

|

|-

| (11)

| If ambulance is attached to the Hospital/ Nursing home/ NGO/

Panchayat (Give details):

|

|-

| (12)

| Type of Ambulance:

|

Grade A

Grade B

|-

| (13)

| Details of personnel-

|

|-

| I.

| (a)

| Name of the Attendant:

|

| -

|

| (b)

| Qualification of the Attendant:

|

| -

|

| (c)

| Trained in First Aid:

|

| -

|

| (d)

| Phone Number:

|

| -

| II.

| (a)

| Name of the Driver:

|

| -

|

| (b)

| Driver License Number:

|

| -

|

| (c)

| Expiration Date:

|

| -

|

| (d)

| Phone Number:

|

| -

| (14)

| Application fees (details of DD) (a demand draft for Rs.

3.

,000/- drawn in favour of-

| -

|

| The Director, Directorate of Health Services, Government
of Goa, Campal, Panaji?Goa403 001), is to be
enclosed with the application:

|

| -

| (15)

| I am aware of the conditions prescribed by the Government for the Ambulance Service, and wish to confirm that I shall abide by the same and such other conditions as may be laid down from time to time by the Directorate of Health Services for the Ambulance Service.

|-

|

| Full name and designation of the applicant

|

|-

|

| Place:

|

|-

|

| Date:

|

|}

Related AI tags, queries and research notes

Translation